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Appointment Letter

Date: March 04, 2024

Mr, Abdul Rashid Khan

B 301,

Adiraj Nayan Paradise,

Darul Mamur Nagar,

Police Station, Near Sai Nagar Gas,

Palghar-401203

Emp Code: 1939

Grade E1

Dear Abdul Rashid

With reference to your application and subsequent interviews with us, we are pleased to appoint you as **System Administrator in IT** as per following terms and condition:

1. Date of Joining

Your date of joining as per the records of the company is **March 04, 2024**

2. Location

Your Office Location will be at **HO**

3. Compensation & Benefits

Your annual compensation Cost to Company (CTC) basis will be **Rs. 4,56,000./-**as detailed in Annexure attached.

4. Probation:

You will be on probation for a period of six months from your date of joining the Organization. At the end of the six month your performance will be reviewed and if not found satisfactory as per organization standards, you will be notified about the same by your reporting manager and the probation will be extended. The Management reserves the right to extend this probationary period if it so desires. The company reserves the right to terminate your services during the probationary period or extend your probationary period without assigning any reason or giving you any notice.

5. Confirmation:

On successful completion of your probation period or its extension thereof, if the performance reports are satisfactory, you will be confirmed in the services of the Company, which will be intimated to you by a letter of confirmation and until such letter is issued, you shall be deemed to be on probation



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6. **Separation:**

During the probation period, either party may terminate the services by giving written notice of One month upto General Manager Level & Two months for Senior General Manager & above levels or salary in lieu of notice period.

After confirmation, either party may terminate the services by giving written notice of 60 Days or salary in lieu of notice period.

Based on work exigencies, the management at its sole discretion may or may not accept the request of the associate to be relieved from services of the company during the notice period.

Notice period will be calculated at the rate of gross salary & other monthly payouts.

It is agreed between you and the Company that in the event you resign/separate from the Company, you will not recruit, select or influence in any way, any employee of our Company or anyone working with us on contract, to join your future employment, as an employee or partner or any other form of work association, after the separation of your services with us

7. **Leaves**

You will be eligible for Annual Leave as per the Company's rules applicable to your category of employees at the time of appointment

8. **Transfer**

You are liable to be transferred from one department to another and from one shift to another shift in the same department or any other department or from one branch to another branch of the Company and also its associate companies existing or acquired/started later on, as required by the exigencies of our business at the discretion of the Company and you shall do such work which will be assigned to you from time to time. The aforesaid condition will not give you any right to claim employment in any associate or sister concern or as for a common seniority with the employee of sister / associates concern

9. **Retirements:**

Subject to your permanent absorption in the Company, your retirement from the services of the Company will be on completion of 60 years of age provided that the management of the Company shall be satisfied as to your physical fitness for efficient performance of your duties when you attain the age of 58.

10. **Acceptance of Gifts**

You will not accept any present, commission or any sort of gratification in cash or kind from any person, party or firm or Company having dealing with the company and if you are offered any, you should immediately report the same to the Management

11. **Documents**

This appointment is valid & subject to verification on your providing proof of date of birth and other certificates regarding your qualification as outlined in the application blank and resume. Willful non- disclosure or wrong disclosure would lead to termination of services. Your date of birth as entered in the records of the Company is

03-09-2002



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12. Confidentiality of Information:

That all intellectual property rights relating to the work done or created by you including all literary, dramatic or artistic work done in the course of your employment, vests solely and exclusively to the company in perpetuity and the company shall have the sole and exclusive right to utilize any such material including text, photographs, illustrations, graphics, film, articles, stories, features, cartoons, books, audio, video, logos, brand names, other items, etc. created, written, made by you. The right in these works that are created, written or made shall continue to vest with the company even after the termination / discontinuation or end of the employment or contract period. You shall not be entitled to any residual copyright in the same. The company would have all exclusive and universal rights to republish, resell or reuse in any newspaper, magazine in any language or in any medium (print, publishing, electronics, television, radio, internet, digital, web, etc.) the articles, stories, features, cartoons, photographs, illustrations, graphics, books, audio transcripts, audio and or visual work, logos, brand names, other items if written, given or created by the you during the currency of the contract period. The company shall be free to make use of your contributions or work or exploit the same in any manner in all of the media whether it is portals or internet, radio, television, broadcasting or DTH and any other emerging form or media driven by technology or otherwise without any payment to you. You shall not divulge any secrets connected with the trade, business, process or interests of the Company or part with any information to the detriment of the Company's interests, nor shall you make any statement to the press/media on any of the issues on behalf of the company or otherwise should there be a need for any modification in one or more benefits extended to you through this letter, by way of enactment of any law by the appropriate state/central Government, you would be entitled to the higher of the benefits but not both.

13. Non-Disclosure Agreements:

You shall not divulge any secrets connected with the trade, business, process or interests of the Company or part with any information to the detriment of the Company's interests, nor shall you make any statement to the press/media on any of the issues on behalf of the company or otherwise should there be a need for any modification in one or more benefits extended to you through this letter, by way of enactment of any law by the appropriate state/central Government, you would be entitled to the higher of the benefits but not both. You will not (except in the normal course of the Company's business) publish any article or statement, deliver any lecture or broadcast or make any communication to the press, including magazine publication relating to the Company's products or to any matter with which the Company may be concerned, unless you have previously applied to and obtained the written permission from the Company.

14. Inventions, Discoveries and Patents:

It is clearly understood that in the event of any emergency where intellectual property created by you is sought by the government then it will be done with due written permission of the Company for which application has to be made to the competent authority accordingly by the party desiring the same. As part of training and development of your skills and faculties, the company will have to spend in cash and kind. During the course of this training and development as well as your engagement with the company you will come to know or possess proprietary and confidential



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Information/knowledge including trade secrets and the company's confidential business, marketing and publishing strategies the same shall not be used by you except in the interest of the company.

15. **General:**

During the continuance of your employment with the Company –

- a. Your employment will be subject to the Company's Code of Conduct, Service rules and regulations and conditions of service made and amended from time to time.
- b. The relationship between the Company and you being employer-employee is entirely governed by this appointment letter and no statute, award or other instrument shall govern the same.
- c. You shall hold yourself in readiness for any training at any place or places whenever required.
- d. You shall not borrow or lend money within the Company.
- e. All disputes arising out of this letter will be subject to the jurisdiction of the Mumbai Courts only. And that the courts tribunals and /or authorities at Mumbai only shall have jurisdiction to entertain, try and decide such dispute or difference arising out of or pertaining to this contract of employment, irrespective of your working headquarter being elsewhere at that times.
- f. You shall disclose all of your interests including investments in companies and your relatives in politics to ensure that your reporting/decisions are unbiased and objective.
- g. Except on holidays as notified from time to time by the Company, you shall attend the office punctually and regularly and devote to your duties the whole of your time and attention.
- h. You will be responsible for safekeeping and return in good condition and order of all Company property, which may be in your use, custody or charge.
- i. If at any time in our opinion, which is final in this matter you are found non-performer or guilty of fraud, dishonest, disobedience, disorderly behavior, negligence, indiscipline, absence from duty without permission or any other conduct considered by us deterrent to our interest or of violation of one or more terms of this letter, your services may be terminated without notice and on account of reason of any of the acts or omission the company shall be entitled to recover the damages from you.

16. **Double Employment Prohibited**

You shall work exclusively for and in the interest of the company and undertake not to engage in any part-time work or engage in any other work, business, occupation or consultation of any kind or accept any employment whether free or paid, directly or indirectly in any other media company including newspaper, magazine, internet, television, radio or any other form of media engaged in dissemination of content. Likewise, you shall not accept any invitation, whether honorary or paid, to appear on television or on radio. You will not without previous written consent of the Company be engaged directly or indirectly in any trade, business or occupation whatsoever.

We welcome you to the Company and wish you a long successful career with us. We expect long standing relationship between yourself and the Company.



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17. Notice period buyout/ Joining Bonus/ Relocation Expense

In case employee wish to leave the services of the company prior to completion of 24 months from the date of joining, hereby company reserve the right to recover the joining Bonus or notice period buyout or any relocation expenses bared by the company from the full & final settlement.

18. Background Verification & Pre employment Medical Checkup

Your services are liable to be terminated at any time:

- during probation or after confirmation, in case you are found to be medically unfit by the Company's Authorized Medical practitioner, on examination;
- As and when the Company comes to know of any conviction by the Court of Law during the tenure of your service with us or conviction and / or any bad record in the past under the previous employer, or because of any false information shared at the time of your appointment or concealed any material information or given any false details in the application form or otherwise as regard age, education qualification , experience , salary etc.
- if you are found to be not possessing desired qualification which do not conform to custom authority and / govt. regulation as may be required from time to time and necessary for continuation of business or its exigencies or on account of redundancy .

19. You will keep the Company informed of any change in your residential address that may happen during the course of employment of your service with the company.

20. While you are in employment of the company, you may be given or handed over company's property and / or equipment for official use and you shall take care of them including their upkeep. On cessation of employment with the Company, you shall return all documents, books, papers relating to the affairs of the Company, purchased with the Company's money, which may have come to you, and also any property of the Company in your possession.



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ANNEXURE - I			
	Name	Rashid Khan	
	Employee Code	1938	
	Designation	System Administrator	
	Department	IT	
	Company	Wadhwa Construction and Infrastructure Pvt Ltd	
	Date of joining	04-03-2024	
	Component	Per Month	Per Year
A	Basic	14,615	1,75,385
	House Rent Allowance	7,308	87,693
	Education Allowance	200	2,400
	Leave Travel Allowance	1,218	14,610
	Special Allowance	10,861	1,30,328
	Total Gross (A)	34,202	4,10,416
B	Employer Provident Fund	1,754	21,046
	Employer ESIC	-	-
	* Diwali Bonus		7,000
C	Total Fixed CTC (A+B)	35,956	4,38,462
D	Annual Commponent		
	PLP		17,538
	Total Annual Commponent		17,538
E	Total Cost To Company (C+D)		4,56,000
# * To be paid at the time of Diwali on prorata basis			
# Additional Benefits - Mediclaim 3 Lakhs (Family) , Accident & Life Insurance			
# Performance Linked Pay will be as per the discretion of the management			

For The Wadhwa Group

Smruti

Smruti Nilave
AGM - Human Resources, Operation & Admin

I hereby read & accept the above terms and conditions

Signature:

Date: